

BASIC LEGAL AND JUDICIAL ETHICS (BLJE)

Master Landmark Case Digest Reviewer & Bar Exam Compendium

*Under the Code of Professional Responsibility and Accountability (CPRA, A.M. No. 22-09-01-SC) and New Code of
Judicial Conduct / CICA*

REVIEWER FRAMEWORK & METHODOLOGY NOTE

- Structured Six-Part Ethical Review Format: Facts, Ethical Issue, Complainant's Arguments, Respondent's Defenses, ALAC Court Ruling (Answer, Legal Basis, Application, Conclusion), and High-Yield Doctrinal Takeaway.
- Comprehensive Scope: CPRA Canons I to VI (Independence, Propriety, Social Media Decorum, Fidelity, Conflict of Interest, Competence & Diligence, Equality, Accountability) and Judicial Ethics (New Code of Judicial Conduct & 2025 CICA).
- Optimized for Manila Law College Juris Doctor Academic Examinations, Practical Case Analysis, and Bar Review Preparation.

[CASE 1] Cayetano v. Monsod

CITATION: *G.R. No. 100118, September 3, 1991 | 201 SCRA 210 (En Banc) | Anchor: CPRA Canon I (Independence) & Definition of the Practice of Law*

I. FACTS OF THE CASE:

Christian Monsod was nominated by President Corazon C. Aquino as Chairman of the Commission on Elections (COMELEC). The 1987 Constitution mandates that the COMELEC Chairman must be a member of the Philippine Bar who has been engaged in the practice of law for at least ten (10) years. Atty. Renato Cayetano opposed the confirmation before the Commission on Appointments (CA), contending that Monsod did not possess the required 10-year practice of law. Cayetano argued that Monsod's career consisted of executive work in banking, corporate management, economics, socio-civic leadership, and agrarian reform, with virtually zero courtroom appearances or traditional litigation. The CA confirmed Monsod, prompting Cayetano to file a Petition for Certiorari and Prohibition before the Supreme Court.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Christian Monsod satisfied the constitutional requirement of having been engaged in the practice of law for at least ten (10) years prior to his appointment as Chairman of the COMELEC.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Atty. Cayetano argued that the 'practice of law' strictly entails active courtroom advocacy, litigation, trial appearances, drafting formal court pleadings, and traditional client counseling in private law firms. He asserted that executive leadership, investment banking, corporate administration, and economic negotiation do not constitute the practice of law, and confirming Monsod violates constitutional standards.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Monsod and the Commission on Appointments argued that the practice of law has evolved beyond the courtroom and embraces any activity, in or out of court, that requires the application of legal knowledge, training, statutory

interpretation, and legal technique. Monsod proved that as corporate counsel, economist, member of the 1986 Constitutional Commission, and advocate for election reforms (NAMFREL), his daily work involved active application of constitutional, commercial, and administrative law.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Christian Monsod satisfied the constitutional qualification. The practice of law is not confined to trial litigation.
[L] LEGAL BASIS	1987 Philippine Constitution, Article IX-C, Section 1(1); People v. Villanueva (14 SCRA 109); Philippine Lawyers Association v. Agrava (105 Phil. 173); CPRA Canon I (Independence and Competence).
[A] APPLICATION / ANALYSIS	The Supreme Court adopted an expansive, modern definition of the practice of law. To practice law is to perform acts characteristic of the legal profession, which includes giving advice or rendering services requiring the use of legal knowledge or skill. This encompasses drafting contracts, corporate governance, statutory interpretation, legal negotiations, and constitutional formulation. The Court held that Monsod’s extensive legal work amply satisfied the 10-year requirement.
[C] CONCLUSION / RULING	The Petition for Certiorari was DISMISSED. Monsod's appointment as COMELEC Chairman was declared VALID and CONSTITUTIONAL.

VI. DOCTRINAL TAKEAWAY: CAYETANO V. MONSOD

The practice of law is any activity, in or out of court, requiring the application of law, legal principles, procedure, or technique. It is not limited to courtroom litigation and includes corporate counsel, contract drafting, and statutory negotiation.

[CASE 2] Re: Statement of the UP Law Faculty on Allegations of Plagiarism (Vinuya Decision)

CITATION: A.M. No. 10-10-4-SC, March 8, 2011 | 644 SCRA 543 (En Banc) | Anchor: CPRA Canon I (Independence) & Canon II (Propriety, Sections 1–4) - Academic Freedom vs. Respect to Courts

I. FACTS OF THE CASE:

Following the Supreme Court's ruling in Vinuya v. Executive Secretary (regarding World War II comfort women), allegations arose that the ponente had plagiarized foreign legal articles without attribution. Thirty-seven (37) professors of the University of the Philippines (UP) College of Law published a public manifesto titled 'Restoring Integrity,' accusing the Supreme Court of an 'extraordinary act of injustice,' 'intellectual dishonesty,' and demanding the ponente's resignation while a motion for reconsideration was still pending. The Supreme Court motu proprio issued a show-cause resolution directing the faculty to explain why they should not be disciplined or cited for indirect contempt.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether the UP Law professors' public manifesto exceeded the permissible bounds of academic freedom and free speech, thereby violating their ethical duty of respect to the Supreme Court as officers of the court.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

The Supreme Court noted that the manifesto used insolent, insulting, and coercive language intended to publicly demean the Court and force a sitting Justice to resign. Releasing the statement while the case was pending violated the sub judice rule, and academic freedom cannot override a lawyer's sworn duty of respect.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

The UP Law faculty argued that as legal scholars, they possessed a constitutional duty under academic freedom to critically analyze judicial rulings and uphold scholarly integrity. They claimed their statement was protected free speech on a matter of public concern and made in good faith without intent to demean the Judiciary.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. The manifesto exceeded the bounds of permissible academic criticism and breached ethical duties.
[L] LEGAL BASIS	CPRA Canon II (Propriety), Sections 1, 2, 4; CPR Canon 11, Rule 11.05; Rule 138, Section 20(b), Rules of Court; In re: Almacen (31 SCRA 562).
[A] APPLICATION / ANALYSIS	Lawyers and law professors have the right to criticize court decisions, but critique must be couched in respectful and dignified language. Admission to the Bar subjects educators to the disciplinary jurisdiction of the Supreme Court. The use of inflammatory language and demands for resignation during pending litigation tended to degrade the administration of justice and breached the Lawyer's Oath.
[C] CONCLUSION / RULING	Respondents were WARNED and ADMONISHED to exercise proper restraint in future public statements. Several professors with respectful explanations were cleared.

VI. DOCTRINAL TAKEAWAY: RE: STATEMENT OF THE UP LAW FACULTY ON ALLEGATIONS OF PLAGIARISM (VINUYA DECISION)

Academic freedom does not immunize law professors from ethical discipline. Criticism of judicial decisions must be scholarly, temperate, and respectful, without demeaning the dignity of the courts or violating the sub judice rule.

[CASE 3] Re: Investigation of Atty. Lorenzo "Larry" G. Gadon

CITATION: A.C. No. 13521, June 27, 2023 | Per Curiam (En Banc) | Anchor: CPRA Canon II (Propriety, Secs. 1, 2, 13, 14), Canon VI (Accountability) - Social Media Misogyny & Retroactivity

I. FACTS OF THE CASE:

A video clip of Atty. Lorenzo 'Larry' Gadon went viral on social media platforms (Facebook, Twitter, YouTube), wherein he hurled extremely foul, vulgar, profane, and misogynistic obscenities against journalist Raissa Robles. The Supreme Court motu proprio placed him under preventive suspension and issued a show-cause order. This was the first landmark

disbarment case adjudicated immediately after the effectivity of the Code of Professional Responsibility and Accountability (CPRA, A.M. No. 22-09-01-SC). Gadon had prior suspensions for similar abusive speech.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Gadon's viral, profane, and misogynistic video on social media warrants disbarment under the CPRA, and whether the CPRA applies retroactively to conduct occurring prior to May 29, 2023.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

The Supreme Court En Banc highlighted that Gadon’s public obscenities and misogynistic slurs degraded the nobility of the legal profession, violated CPRA rules prohibiting abusive cyber content, and showed an incorrigible history of unrepentant misconduct warranting the ultimate penalty of disbarment.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Gadon argued that the video was a private recording shared with friends that was leaked without consent; that his words were protected political speech; and that applying the CPRA retroactively to conduct prior to May 29, 2023, violated constitutional due process.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Atty. Gadon was UNANIMOUSLY DISBARRED for gross misconduct and intolerable cyber-misogyny.
[L] LEGAL BASIS	CPRA General Provisions, Section 1 (Retroactivity); Canon II (Propriety), Sections 1, 2, 13, 14; Canon VI (Accountability), Sections 33, 34, 37.
[A] APPLICATION / ANALYSIS	The Court ruled that the CPRA applies retroactively to pending disciplinary proceedings. Freedom of speech does not grant lawyers a license to utter scandalous and misogynistic profanities. Social media is a public forum, and privacy defenses fail when content is voluntarily recorded and disseminated. Gadon's habitual offenses proved utter unfitness to remain an officer of the court.
[C] CONCLUSION / RULING	Atty. Lorenzo Gadon was DISBARRED from the practice of law and his name stricken from the Roll of Attorneys.

VI. DOCTRINAL TAKEAWAY: RE: INVESTIGATION OF ATTY. LORENZO "LARRY" G. GADON

Under CPRA Canon II, Sections 13 and 14, social media conduct is subject to strict ethical accountability. A lawyer's misogynistic and profane cyber-attacks degrade public trust and justify disbarment without free speech immunity.

[CASE 4] Dr. Victoria "Vicki" Belo-Henares v. Atty. Roberto "Argee" C. Guevarra

CITATION: A.C. No. 11394, December 1, 2016 | 804 SCRA 323 (Per Curiam) | Anchor: CPRA Canon II (Propriety, Sections 1, 2, 13, 14) - Online Defamation & Inapplicability of Privacy Settings

I. FACTS OF THE CASE:

Atty. Guevarra represented a medical malpractice client against Dr. Vicki Belo. Dissatisfied with settlement talks, Atty. Guevarra launched a malicious Facebook smear campaign, posting insulting remarks calling Dr. Belo a 'quack doctor,' 'criminal,' and 'Dr. Frankenstein,' while urging the public to boycott her clinics. Dr. Belo filed a disbarment complaint for gross misconduct and online harassment.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether a lawyer may invoke constitutional privacy rights over Facebook posts set to 'Friends Only' to escape disciplinary liability for defamatory statements against an opposing party.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Dr. Belo argued that Atty. Guevarra weaponized social media to destroy her reputation, extort monetary settlements, and conduct an extrajudicial smear campaign instead of confining the dispute to the courts.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Atty. Guevarra claimed his posts were set to 'Friends Only' (private) and enjoyed constitutional privacy protection, and that he was merely exercising zealous advocacy on behalf of his aggrieved client and free speech.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	NO. Privacy settings on Facebook cannot shield a lawyer from disciplinary sanctions for online defamation.
[L] LEGAL BASIS	CPRA Canon II (Propriety), Sections 1, 2, 13, 14; CPR Rule 7.03, Rule 8.01; Vivares v. St. Theresa’s College (G.R. No. 202664).
[A] APPLICATION / ANALYSIS	Facebook is inherently social and public; setting a profile to 'Friends Only' does not create a reasonable expectation of privacy. Zealous advocacy does not justify cyberbullying or extrajudicial trial by publicity. Lawyers are required to maintain dignity and decorum across all digital spaces.
[C] CONCLUSION / RULING	Atty. Roberto Guevarra was SUSPENDED from the practice of law for ONE (1) YEAR with a stern warning.

VI. DOCTRINAL TAKEAWAY: DR. VICTORIA "VICKI" BELO-HENARES V. ATTY. ROBERTO "ARGE" C. GUEVARRA

A lawyer cannot invoke social media privacy settings ('Friends Only') as a defense for posting defamatory, abusive, or unprofessional remarks against an opposing party.

[CASE 5] Police Supt. Hans Cristian Marantan v. Atty. Jose Manuel Diokno & Atty. Ferdinand Topacio

CITATION: G.R. No. 205956, January 22, 2014 | 714 SCRA 438 (En Banc) | Anchor: CPRA Canon II (Propriety, Section 19) - Sub Judice Rule & Televised Press Conferences

I. FACTS OF THE CASE:

Following the Atimonan incident resulting in 13 deaths, criminal charges were filed against Supt. Marantan. During preliminary investigations, private prosecutors Atty. Jose Manuel Diokno and Atty. Ferdinand Topacio held televised press conferences, presenting ballistics charts and publicly declaring the incident a 'cold-blooded rubout.' Marantan petitioned the Supreme Court to hold them in indirect contempt for violating the sub judice rule.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether holding televised press conferences analyzing evidence of a pending criminal case violates the sub judice rule and warrants contempt sanctions.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Marantan argued that opposing counsels orchestrated a trial by publicity, poisoned public perception, and biased the court by publicly declaring his guilt before trial.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Counsels argued their statements were protected by freedom of information on a matter of public interest and did not pose a clear and present danger to judicial administration.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	NO (No Contempt), BUT COUNSELS WERE ADMONISHED. Lawyers must not litigate pending cases in the media.
[L] LEGAL BASIS	CPRA Canon II (Propriety), Section 19 (Sub Judice Rule); CPR Rule 13.02; Nestle Phils. v. Sanchez (154 SCRA 542).
[A] APPLICATION / ANALYSIS	To constitute contempt under the sub judice rule, speech must pose a clear and present danger to judicial impartiality. While the comments did not paralyze the court, the Court warned that lawyers are strictly prohibited from making extrajudicial statements that tend to influence the court or arouse public passion.
[C] CONCLUSION / RULING	The Contempt Petition was DISMISSED, but respondents were WARNED and ADMONISHED to observe strict sub judice decorum.

VI. DOCTRINAL TAKEAWAY: POLICE SUPT. HANS CRISTIAN MARANTAN V. ATTY. JOSE MANUEL DIOKNO & ATTY. FERDINAND TOPACIO

Under CPRA Canon II, Section 19, lawyers must strictly refrain from litigating cases in the press, holding media trials, or making public statements that tend to prejudice pending proceedings.

[CASE 6] Ventura v. Atty. Samson

CITATION: A.C. No. 9608, November 27, 2012 | 686 SCRA 430 (En Banc) | Anchor: CPRA Canon III (Fidelity, Sections 1, 2, 6, 7) - Misappropriation of Client Filing Fees & Fiduciary Trust

I. FACTS OF THE CASE:

Complainant Ventura hired Atty. Samson to file a civil complaint, paying PHP 50,000 as acceptance fee and PHP 30,000 designated for court filing fees. Atty. Samson failed to file the complaint, gave evasive excuses, and refused to refund the money upon demand, claiming the fees were fully earned through draft research.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Samson committed gross misconduct and breached fiduciary duty by failing to file the complaint and refusing to refund client trust funds.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Ventura argued that Atty. Samson abandoned the case, misappropriated the PHP 30,000 filing fees for personal use, and refused to provide an accounting despite repeated demands.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Atty. Samson claimed that the acceptance fee was his absolute property and that extensive legal research and draft pleadings were prepared, justifying retention of the entire amount.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Respondent committed gross negligence and misappropriated client trust funds.
[L] LEGAL BASIS	CPRA Canon III (Fidelity), Sections 1, 2, 6, 7; Canon IV (Competence & Diligence), Sections 1, 3; CPR Canons 16, 17, 18.
[A] APPLICATION / ANALYSIS	Money entrusted to a lawyer for a specific purpose (such as filing fees) is held in trust. Failure to apply the money to its intended purpose creates a presumption of misappropriation. An acceptance fee does not excuse complete inaction or refusal to refund unexpended litigation expenses.
[C] CONCLUSION / RULING	Atty. Samson was SUSPENDED from law practice for ONE (1) YEAR and ordered to RESTITUTE PHP 80,000 with 6% interest.

VI. DOCTRINAL TAKEAWAY: VENTURA V. ATTY. SAMSON

Client funds received for specific expenses are held strictly in trust. A lawyer must immediately account for or return unspent amounts upon demand; failure to do so is gross misconduct.

[CASE 7] Request of the Public Attorney's Office (PAO) to Delete Section 22, Canon III of the CPRA

CITATION: A.M. No. 23-05-05-SC, July 11, 2023 | Resolution En Banc | Anchor: CPRA Canon III (Fidelity, Section 22) - Conflict of Interest in Public Legal Aid & Supreme Court Rule-Making Power

I. FACTS OF THE CASE:

The Supreme Court promulgated Section 22, Canon III of the CPRA, permitting Public Attorneys in PAO to represent opposing indigent parties provided separate public defenders are assigned with strict conflict screening. PAO Chief

Persida Rueda-Acosta opposed the rule, issued an office circular ordering public defenders to decline opposing clients, and petitioned the Supreme Court to delete Section 22.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Section 22, Canon III of the CPRA is valid and binding on the PAO, and whether PAO can refuse compliance based on institutional conflict-of-interest interpretations.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

PAO argued that representing opposing parties within one agency violates fiduciary duties to indigents, creates irreconcilable institutional conflicts, and risks unauthorized disclosure of client confidences.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

The Supreme Court En Banc held that the Constitution grants the Judiciary exclusive rule-making power over the Bar. Disqualifying the entire PAO agency whenever an adverse party seeks legal aid denies indigents equal access to justice.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	NO (Request Denied). Section 22, Canon III is VALID, CONSTITUTIONAL, and MANDATORY.
[L] LEGAL BASIS	1987 Constitution, Article VIII, Section 5(5); CPRA Canon III (Fidelity), Section 22 (Public Legal Aid Conflict Management).
[A] APPLICATION / ANALYSIS	The Supreme Court ruled that conflict of interest in legal aid organizations applies individually to handling lawyers, not imputed wholesale to the entire agency. Strict internal screening ('Chinese walls') protects client confidences while ensuring both adverse indigent parties receive constitutional right to counsel.
[C] CONCLUSION / RULING	PAO's request was DENIED WITH FINALITY. All Public Attorneys were ordered to comply, and Chief Acosta was issued a show-cause order.

VI. DOCTRINAL TAKEAWAY: REQUEST OF THE PUBLIC ATTORNEY'S OFFICE (PAO) TO DELETE SECTION 22, CANON III OF THE CPRA

Under CPRA Canon III, Section 22, conflict of interest in PAO applies individually. Separate public attorneys may represent opposing indigents under ethical screening to protect universal access to justice.

[CASE 8] David v. Atty. Diosdado M. Rongcal

CITATION: A.C. No. 12103, June 23, 2020 | 940 SCRA 112 (First Division) | Anchor: CPRA Canon IV (Competence and Diligence, Sections 1–4) - Failure to File Appeal Brief & Blaming Staff

I. FACTS OF THE CASE:

Complainant David hired Atty. Rongcal to appeal an adverse property decision before the Court of Appeals. Atty. Rongcal failed to file the Appellant's Brief despite multiple extensions, resulting in the appeal's dismissal with prejudice. When David inquired, Atty. Rongcal lied, claiming the appeal was still pending.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Rongcal committed gross negligence and dishonest concealment under Canon IV for failing to file the appeal brief and lying about the dismissal.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

David argued that respondent's total negligence destroyed his statutory right to appeal, caused eviction from his home, and was compounded by deliberate lies to conceal the dismissal.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Atty. Rongcal claimed the failure was an honest mistake caused by his legal secretary misplacing notices and his excessive trial caseload in multiple provinces.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Counsel committed gross negligence and dishonest concealment.
[L] LEGAL BASIS	CPRA Canon IV (Competence and Diligence), Sections 1, 2, 3, 4; Canon II (Propriety), Section 1; CPR Canons 17, 18.
[A] APPLICATION / ANALYSIS	A lawyer must serve the client with competence and diligence. Failure to file an appeal brief is gross negligence. A lawyer cannot shift blame to secretaries or staff; docket management is the lawyer's personal responsibility. Lying to conceal failure is a severe breach of the Lawyer's Oath.
[C] CONCLUSION / RULING	Atty. Diosdado M. Rongcal was SUSPENDED from the practice of law for TWO (2) YEARS with a stern warning.

VI. DOCTRINAL TAKEAWAY: DAVID V. ATTY. DIOSDADO M. RONGCAL

Failure to file an appellant's brief constitutes gross negligence under CPRA Canon IV. A lawyer cannot escape liability by blaming legal secretaries, staff oversight, or heavy caseloads.

[CASE 9] Re: Anonymous Complaint Against Atty. Cresencio P. Co Untian, Jr.

CITATION: A.C. No. 5900, April 10, 2019 | 899 SCRA 120 (En Banc) | Anchor: CPRA Canon V (Equality, Sections 1–4) & Canon II (Propriety) - Sexual Harassment in Law Schools

I. FACTS OF THE CASE:

Female law students filed an anonymous complaint supported by sworn affidavits against law professor Atty. Co Untian, Jr., proving that he repeatedly subjected students to sexual advances, romantic text messages, demanding kisses or lap sitting for passing grades, and classroom sexual harassment.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether a law professor who sexually harasses law students is administratively liable under the ethical rules of the Bar.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Affiants proved that respondent exploited his moral ascendancy as professor and bar reviewer to demand sexual favors, violating R.A. 7877 and creating a hostile academic environment.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Respondent claimed the complaint was anonymous and malicious, and that the messages were harmless friendly jokes and paternal affection without lustful intent.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Respondent abused moral ascendancy and engaged in unlawful sexual harassment.
[L] LEGAL BASIS	CPRA Canon V (Equality), Sections 1, 2, 3, 4; CPRA Canon II (Propriety), Section 1; Republic Act No. 7877; CPR Rule 1.01.
[A] APPLICATION / ANALYSIS	Law professors hold moral ascendancy over students; exploiting this power for sexual favors is reprehensible misconduct. CPRA Canon V mandates absolute zero tolerance for sexual harassment and gender discrimination. Substantiated anonymous complaints are actionable.
[C] CONCLUSION / RULING	Atty. Cresencio P. Co Untian, Jr. was SUSPENDED from the practice of law for TWO (2) YEARS.

VI. DOCTRINAL TAKEAWAY: RE: ANONYMOUS COMPLAINT AGAINST ATTY. CRESENCIO P. CO UNTIAN, JR.

Under CPRA Canon V, sexual harassment and abuse of moral ascendancy by a lawyer or law professor constitute gross misconduct punishable by suspension or disbarment.

[CASE 10] Ma. Cecilia Lorenzana v. Judge Ma. Cecilia I. Austria

CITATION: A.M. No. RTJ-09-2200, April 2, 2014 | 720 SCRA 336 (En Banc) | Anchor: New Code of Judicial Conduct / 2025 CJCACanon 4 (Propriety) - Judicial Decorum on Social Media

I. FACTS OF THE CASE:

An administrative complaint with screenshots was filed against RTC Judge Austria for maintaining public social media profiles (Friendster/Facebook) displaying provocative, revealing photos and engaging in public bickering online regarding her personal life and court cases.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether a sitting judge violates the New Code of Judicial Conduct by posting provocative photos and engaging in public disputes on social networking sites.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

Complainant argued that undignified photos and online bickering eroded public respect for the judicial robe and constituted conduct unbecoming of a judge.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Judge Austria claimed her social media accounts were private, recreational, and protected personal self-expression unrelated to her judicial decisions.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. Judge Austria’s online conduct violated judicial propriety and constituted conduct unbecoming of a judge.
[L] LEGAL BASIS	New Code of Judicial Conduct, Canon 4 (Propriety), Sections 1, 2, 6; Code of Judicial Conduct, Canon 2; 2025 CICA.
[A] APPLICATION / ANALYSIS	Judges are the visible embodiment of the law and must maintain propriety in all activities, including cyberspace. The judicial robe follows the judge online. Displaying provocative photos and engaging in online bickering tarnishes public confidence in the Judiciary.
[C] CONCLUSION / RULING	Judge Austria was found GUILTY of CONDUCT UNBECOMING OF A JUDGE and was REPRIMANDED with a stern warning.

VI. DOCTRINAL TAKEAWAY: MA. CECILIA LORENZANA V. JUDGE MA. CECILIA I. AUSTRIA

Under Canon 4 of Judicial Ethics, judges must maintain dignity and restraint online. Social media profiles and posts must never degrade the dignity or impartiality of the judicial office.

[CASE 11] Office of the Court Administrator (OCA) v. Judge Ruiz

CITATION: A.M. No. RTJ-13-2361, February 2, 2021 | En Banc Resolution | Anchor: New Code of Judicial Conduct / CICA Canons 1 (Independence) & 2 (Integrity) - Bribery & Gross Ignorance of Law

I. FACTS OF THE CASE:

An OCA audit revealed that RTC Judge Ruiz systematically accepted financial bribes to grant bail in non-bailable drug offenses without conducting the mandatory bail hearings required by the Rules of Criminal Procedure.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Judge Ruiz’s acts of taking bribes and granting bail without hearings constitute Gross Misconduct and Gross Ignorance of the Law warranting dismissal.

III. COMPLAINANT'S ARGUMENTS / ALLEGATIONS:

OCA proved that the judge commercialized judicial discretion and flagrantly disregarded mandatory criminal procedure on bail.

IV. RESPONDENT'S ("DEPENDANT'S") DEFENSES / ARGUMENTS:

Judge Ruiz claimed he acted within judicial discretion and alleged that the complaint was a malicious frame-up by disgruntled personnel without marked-money entrapment.

V. THE COURT'S RULING (ALAC METHOD):

[A] ANSWER	YES. The judge committed Gross Misconduct and Gross Ignorance of the Law.
[L] LEGAL BASIS	New Code of Judicial Conduct, Canons 1, 2, 3; Rule 114, Section 8, Rules of Court; CJCA Rules on Discipline.
[A] APPLICATION / ANALYSIS	Bail hearings in capital offenses are strictly mandatory. Granting bail without a hearing is gross ignorance of the law. Substantial evidence proves corruption, and corrupt judges forfeit the right to hold judicial office.
[C] CONCLUSION / RULING	Judge Ruiz was DISMISSED FROM THE SERVICE with FORFEITURE of all benefits and PERPETUAL DISQUALIFICATION from public office.

VI. DOCTRINAL TAKEAWAY: OFFICE OF THE COURT ADMINISTRATOR (OCA) V. JUDGE RUIZ

Disregarding elementary, well-settled procedural rules (such as mandatory bail hearings) constitutes Gross Ignorance of the Law, resulting in dismissal and forfeiture of benefits.

MASTER COMPARATIVE REVIEW MATRIX: BLJE & JUDICIAL ETHICS

Case & Citation	Topic & Canon Anchor	Complainant vs. Defense	ALAC Ruling & Sanction
Cayetano v. Monsod (G.R. No. 100118, September 3, 1991)	CPRA Canon I (Independence) & Definition of the Practice of Law	COMPL: Atty. Cayetano argued that the 'practice of law' strictly entails active courtroom advocacy, li... DEF: Monsod and the Commission on Appointments argued that the practice of law has evolved beyond th...	YES. Christian Monsod satisfied the constitutional qualification. The practice of law is not confined to trial litigation. The Petition for Certiorari was DISMISSED. Monsod's appointment as COMELEC Chairman was declared VALID and CONSTITUTIONAL.
Re: Statement of the UP Law Faculty on Allegations of Plagiarism (Vinuya Decision) (A.M. No. 10-10-4-SC, March 8, 2011)	CPRA Canon I (Independence) & Canon II (Propriety, Sections 1–4) - Academic Freedom vs. Respect to Courts	COMPL: The Supreme Court noted that the manifesto used insolent, insulting, and coercive language inte... DEF: The UP Law faculty argued that as legal scholars, they possessed a constitutional duty under ac...	YES. The manifesto exceeded the bounds of permissible academic criticism and breached ethical duties. Respondents were WARNED and ADMONISHED to exercise proper restraint in future public statements. Several professors with respectful explanations were cleared.
Re: Investigation of Atty. Lorenzo	CPRA Canon II (Propriety,	COMPL: The Supreme Court En Banc	YES. Atty. Gadon was

"Larry" G. Gadon (A.C. No. 13521, June 27, 2023)	Secs. 1, 2, 13, 14), Canon VI (Accountability) - Social Media Misogyny & Retroactivity	highlighted that Gadon's public obscenities and misogynistic slurs de... DEF: Gadon argued that the video was a private recording shared with friends that was leaked without...	UNANIMOUSLY DISBARRED for gross misconduct and intolerable cyber-misogyny. Atty. Lorenzo Gadon was DISBARRED from the practice of law and his name stricken from the Roll of Attorneys.
Dr. Victoria "Vicki" Belo-Henares v. Atty. Roberto "Argee" C. Guevarra (A.C. No. 11394, December 1, 2016)	CPRA Canon II (Propriety, Sections 1, 2, 13, 14) - Online Defamation & Inapplicability of Privacy Settings	COMPL: Dr. Belo argued that Atty. Guevarra weaponized social media to destroy her reputation, extort m... DEF: Atty. Guevarra claimed his posts were set to 'Friends Only' (private) and enjoyed constitutiona...	NO. Privacy settings on Facebook cannot shield a lawyer from disciplinary sanctions for online defamation. Atty. Roberto Guevarra was SUSPENDED from the practice of law for ONE (1) YEAR with a stern warning.
Police Supt. Hans Cristian Marantan v. Atty. Jose Manuel Diokno & Atty. Ferdinand Topacio (G.R. No. 205956, January 22, 2014)	CPRA Canon II (Propriety, Section 19) - Sub Judice Rule & Televised Press Conferences	COMPL: Marantan argued that opposing counsels orchestrated a trial by publicity, poisoned public perce... DEF: Counsels argued their statements were protected by freedom of information on a matter of public...	NO (No Contempt), BUT COUNSELS WERE ADMONISHED. Lawyers must not litigate pending cases in the media. The Contempt Petition was DISMISSED, but respondents were WARNED and ADMONISHED to observe strict sub judice decorum.
Ventura v. Atty. Samson (A.C. No. 9608, November 27, 2012)	CPRA Canon III (Fidelity, Sections 1, 2, 6, 7) - Misappropriation of Client Filing Fees & Fiduciary Trust	COMPL: Ventura argued that Atty. Samson abandoned the case, misappropriated the PHP 30,000 filing fees... DEF: Atty. Samson claimed that the acceptance fee was his absolute property and that extensive legal...	YES. Respondent committed gross negligence and misappropriated client trust funds. Atty. Samson was SUSPENDED from law practice for ONE (1) YEAR and ordered to RESTITUTE PHP 80,000 with 6% interest.
Request of the Public Attorney's Office (PAO) to Delete Section 22, Canon III of the CPRA (A.M. No. 23-05-05-SC, July 11, 2023)	CPRA Canon III (Fidelity, Section 22) - Conflict of Interest in Public Legal Aid & Supreme Court Rule-Making Power	COMPL: PAO argued that representing opposing parties within one agency violates fiduciary duties to in... DEF: The Supreme Court En Banc held that the Constitution grants the Judiciary exclusive rule-making...	NO (Request Denied). Section 22, Canon III is VALID, CONSTITUTIONAL, and MANDATORY. PAO's request was DENIED WITH FINALITY. All Public Attorneys were ordered to comply, and Chief Acosta was issued a show-cause order.
David v. Atty. Diosdado M. Rongcal (A.C. No. 12103, June 23, 2020)	CPRA Canon IV (Competence and Diligence, Sections 1-4) - Failure to File Appeal Brief & Blaming Staff	COMPL: David argued that respondent's total negligence destroyed his statutory right to appeal, caused... DEF: Atty. Rongcal claimed the failure was an honest mistake caused by his legal secretary misplacin...	YES. Counsel committed gross negligence and dishonest concealment. Atty. Diosdado M. Rongcal was SUSPENDED from the practice of law for TWO (2) YEARS with a stern warning.

Re: Anonymous Complaint Against Atty. Cresencio P. Co Untian, Jr. (A.C. No. 5900, April 10, 2019)	CPRA Canon V (Equality, Sections 1–4) & Canon II (Propriety) - Sexual Harassment in Law Schools	COMPL: Affiants proved that respondent exploited his moral ascendancy as professor and bar reviewer to... DEF: Respondent claimed the complaint was anonymous and malicious, and that the messages were harmle...	YES. Respondent abused moral ascendancy and engaged in unlawful sexual harassment. Atty. Cresencio P. Co Untian, Jr. was SUSPENDED from the practice of law for TWO (2) YEARS.
Ma. Cecilia Lorenzana v. Judge Ma. Cecilia I. Austria (A.M. No. RTJ-09-2200, April 2, 2014)	New Code of Judicial Conduct / 2025 CICA Canon 4 (Propriety) - Judicial Decorum on Social Media	COMPL: Complainant argued that undignified photos and online bickering eroded public respect for the j... DEF: Judge Austria claimed her social media accounts were private, recreational, and protected perso...	YES. Judge Austria's online conduct violated judicial propriety and constituted conduct unbecoming of a judge. Judge Austria was found GUILTY of CONDUCT UNBECOMING OF A JUDGE and was REPRIMANDED with a stern warning.
Office of the Court Administrator (OCA) v. Judge Ruiz (A.M. No. RTJ-13-2361, February 2, 2021)	New Code of Judicial Conduct / CICA Canons 1 (Independence) & 2 (Integrity) - Bribery & Gross Ignorance of Law	COMPL: OCA proved that the judge commercialized judicial discretion and flagrantly disregarded mandato... DEF: Judge Ruiz claimed he acted within judicial discretion and alleged that the complaint was a mal...	YES. The judge committed Gross Misconduct and Gross Ignorance of the Law. Judge Ruiz was DISMISSED FROM THE SERVICE with FORFEITURE of all benefits and PERPETUAL DISQUALIFICATION from public office.